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Background Guide

Comprehensive Deliberation on Electoral Reforms and Institutional Accountability to Ensure Free, Fair, Transparent, and Credible Elections in India

with Special Reference to Recent Developments in India

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A Letter from The Executive Board

Respected Members, We, as the chair for this Confrence**,** whole-heartedly welcome each and every single one of you, to this unconventional, yet, the most important Committee.

With the help of this Background Guide, towards the Agenda, we as the Executive Board, aim to give you a starting point, a base, for your research and most importantly, a base for the AIPPM, to forbade clarifications.

Delegates, although the Committee might be unconventional, it is still one of the most relevant and the most important committee in the Modern Era.

This is where, your research comes in and we would like to reiterate here, that this Background Guide is **only to be used for reference**. Please don't limit or consider your research done after going through the Background Guides contents. *The executive board has tried their level best to inculcate everything here, if something left or any questions unanswered it is the delegates' responsibility to research and understand it.*

This is - simply a starting point. Looking forward to hosting the best committee, The one, the only, The AIPPM

Regards
Executive Board

PREAMBLE:

THE CONSTITUTION OF INDIA

PREAMBLE

WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a [1]**[SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC]** and to secure to all its citizens :

JUSTICE, social, economic and political;

LIBERTY of thought, expression, belief, faith and worship;

EQUALITY of status and of opportunity and to promote among them all;

FRATERNITY assuring the dignity of the individual and the [2][unity and integrity of the Nation];

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949 do **HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.**

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1. Subs. by the Constitution (Forty-second Amendment) Act, 1976, Sec.2, for "Sovereign Democratic Republic" (w.e.f. 3.1.1977)
2. Subs. by the Constitution (Forty-second Amendment) Act, 1976, Sec.2, for "Unity of the Nation" (w.e.f. 3.1.1977)

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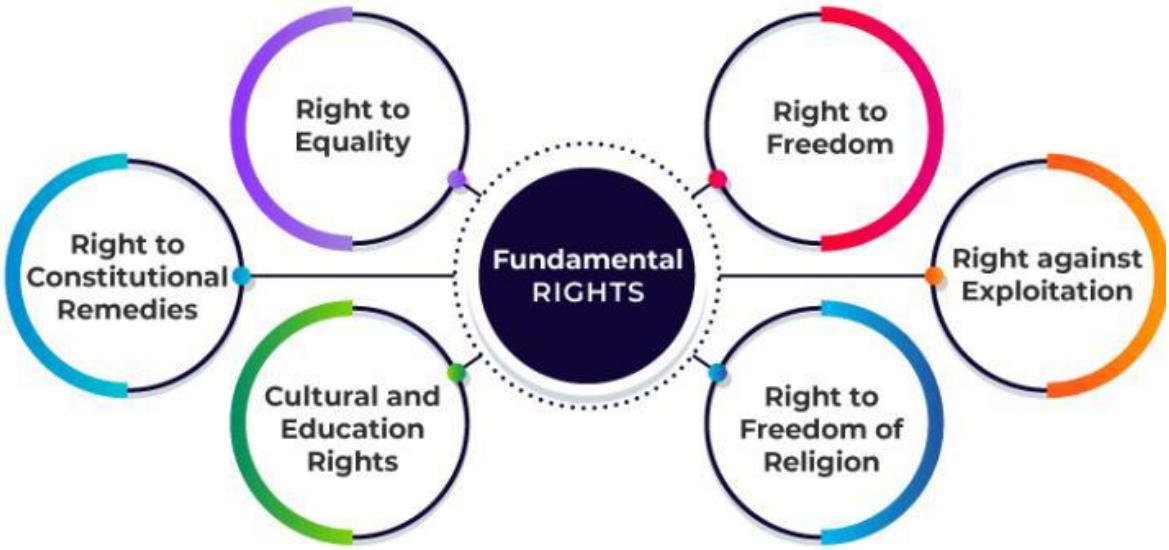
INTRODUCTION

Before proceeding with the agenda, it is essential to understand the meaning of fundamental rights, This understanding will provide a solid foundation.

Fundamental rights are essential rights guaranteed to every citizen by the Indian Constitution. They ensure that all individuals are treated equally and have the freedom to live their lives without fear of discrimination or oppression.



What are Fundamental Rights?

Fundamental rights are like special rules that protect our freedom and dignity. They are important because they help everyone live happily and fairly. In India, these rights are written in the Constitution, which is like the country's rulebook.

Role of Fundamental Rights?

Fundamental rights are important because they help keep our society fair and just. They ensure that everyone can live freely and happily without fear of being treated badly. For example, if someone is bullied at school, they can speak up because they have the right to be treated with respect.

These rights also help protect the weak and ensure that everyone gets a chance to succeed. They are like a shield that guards our freedom and dignity, making sure we can all live together peacefully.
Fundamental rights in India are essential for ensuring individual freedoms and protecting citizens from arbitrary actions by the state. However, these rights are not absolute and come with certain limitations.

Relationship of fundamental rights with state

1. Fundamental Rights as Limitations on State Power
Fundamental rights in India are enshrined in Part III of the Constitution (Articles 12–35) and are designed to protect citizens from arbitrary actions by the state. They act as a check on the powers of the government, ensuring that the state does not interfere with the essential liberties and freedoms of individuals. The state is defined broadly to include not just the government but also its agencies and instrumentalities.
2. State's Negative Obligation
The state has a negative obligation, meaning it is required not to act in ways that violate fundamental rights. For example, the state cannot pass laws or take administrative actions that infringe upon citizens' rights to equality, freedom of speech, or religion. If such violations occur, citizens can seek redress directly from the Supreme Court or High Courts for enforcement.
3. Judicial Review and Protection
The judiciary plays a crucial role in safeguarding fundamental rights. Courts have the power to review and strike down any law or action of the state that contradicts fundamental rights, thanks to provisions like Article 13. This ensures that the state remains accountable and does not overstep its constitutional limits.

4. Reasonable Restrictions and Exceptions
While fundamental rights are strong protections, they are not absolute. The state can impose reasonable restrictions on certain rights in the interest of public order, national security, or morality. For example, during a national emergency, some fundamental rights (except those under Articles 20 and 21) can be suspended by the President's order.
5. State's Positive Role in Promoting Rights
Although fundamental rights primarily limit state power, the state also has a positive role in creating conditions for the enjoyment of rights. This is complemented by the Directive Principles of State Policy (DPSP), which

guide the state in making laws and policies for social and economic welfare. However, DPSPs are not enforceable by courts, unlike fundamental rights.

6. Amendments and the Basic Structure Doctrine

Parliament can amend fundamental rights, but it cannot alter the basic structure of the Constitution as established by the Supreme Court in landmark cases like ***Kesavananda Bharati v. State of Kerala***. This ensures that the core values of democracy, rule of law, and protection of rights remain intact.

Why It Is Important to Ensure Fundamental Rights

- **Protection from Arbitrary State Actions**
  Fundamental rights act as a shield for citizens against misuse of power by the government or state authorities. They prevent the state from acting in ways that could harm individual liberty, dignity, or equality.

- **Promotion of Equality and Justice**
  These rights guarantee that all citizens are treated equally before the law, regardless of their background, religion, caste, or gender. This helps in building a fair and just society where everyone has equal opportunities.

- **Empowerment of Citizens**
  Fundamental rights empower individuals to stand up against injustice, corruption, or discrimination. Citizens can approach the courts if their rights are violated, ensuring accountability and the rule of law.

- **Preservation of Human Dignity**
  By guaranteeing basic freedoms like speech, expression, religion, and movement, fundamental rights help protect the dignity of every individual. They ensure that people can live with self-respect and personal security.

- **Foundation of Democracy**
  Without fundamental rights, democracy cannot function properly. Rights like freedom of speech and the right to participate in government ensure that citizens have a voice in how they are governed.

- **Check on Government Power**
  Fundamental rights serve as a check on the government, preventing authoritarianism and ensuring that the state works within the limits set by the Constitution.
- **Unity and Social Harmony**
  By protecting minority rights and promoting equality, fundamental rights help maintain social harmony and unity in a diverse country like India

Fundamental rights a negative right on the state

Fundamental rights in India are, in their classic form, considered negative rights on the state. This means that the primary duty of the state is to *not interfere* with the fundamental rights of individuals. The state is obligated to refrain from actions that would violate or restrict these rights, such as restricting freedom of speech or practicing discrimination

fundamental rights as negative rights:

- **Negative Obligation**: The state must not pass laws or take administrative actions that infringe upon the fundamental rights of citizens. For example, the state cannot enact a law that curtails freedom of expression unless it is a reasonable restriction allowed by the Constitution.
- **Article 13**: This article ensures that any law made by the state that violates fundamental rights is void, reinforcing the idea of a negative obligation on the state.
- **Judicial Enforcement**: If the state violates a fundamental right, individuals can approach the courts for protection and remedy. The courts have the power to strike down laws or actions that breach these rights.
- **Exceptions**: While fundamental rights are mainly negative obligations, some rights (like the right to education) also impose positive duties on the state to provide certain entitlements. However, the core of fundamental rights in India remains the limitation of state power.

Sovereignty concept and its emergence

The concept of sovereignty refers to the supreme authority of a state or government to govern itself and its territory without external interference. It is a foundational idea in political science and international relations, shaping how states interact with each other and manage their internal affairs.

Key Characteristics of Sovereignty

- **Absolute Authority:** The sovereign has the highest authority within a territory and is not subject to any higher power.
- **Indivisibility**: Sovereignty cannot be divided; it must reside in a single authority or body.
- **Perpetuity:** Sovereignty is not temporary; it is ongoing and not subject to time limits.
- **Exclusivity**: The sovereign has the sole right to make and enforce laws within its territory

Sovereignty in India emerged through a long struggle against colonial rule, the integration of diverse regions, and the establishment of a democratic state based on popular sovereignty. The Indian state now exercises supreme authority within its territory, with all power ultimately derived from the people

Sovereignty and the State

- **Sovereignty** is the supreme authority within a territory. In modern states, it means the state has the final say over its laws and governance, free from external control.
- **State** refers to the political organization with a government, defined territory, and population. The state exercises sovereignty over its territory and people.

Power Resides with Citizens: Popular Sovereignty

- **Popular Sovereignty** is the principle that the government's authority comes from the consent of the governed—that is, the people themselves. In India, this is enshrined in the Constitution's Preamble, which begins with "We, the People," and declares India a "Sovereign Democratic Republic".

- **Democratic Processes:** Citizens express their will through elections and participation in governance. The government and its branches derive their legitimacy and power from the people's consent.
- **Constitutional Safeguards:** The Constitution provides for separation of powers, judicial review, and political participation, ensuring that the state remains accountable to the people.

Allegiance

- **Allegiance** is the loyalty or commitment of citizens to the state. In a democracy, citizens owe allegiance to the state because it is their creation and representative; they see their interests reflected in its laws and policies.
- **Reciprocal Relationship:** The state, in turn, is expected to protect citizens' rights and welfare. This mutual relationship strengthens national unity and stability

1. Introduction to the agenda:

India is the world's largest democracy, with over 968 million registered voters and 1 million+ polling stations. Since 1952, the country has successfully conducted 17 general elections. Yet the very scale and complexity that makes this achievement remarkable also generates systemic vulnerabilities. This committee deliberates on whether India's electoral architecture its institutions, laws, finance rules, and technology adequately ensures elections that are genuinely free, fair, transparent, and credible.

Recent years have brought the issue to a head. The Supreme Court struck down the Electoral Bond Scheme in 2024. The government's CEC Appointment Act 2023 bypassed the judiciary's directive on an independent selection panel. The One Nation One Election Bill was introduced in Parliament in December 2024. Electoral roll irregularities surfaced in multiple state elections. These developments make this topic both timely and consequential.

2. Constitutional & Legal Framework

The following constitutional provisions and statutes form the backbone of India's election law:

Provision	Significance
Art. 324	Vests superintendence of elections in the Election Commission of India (ECI).
Art. 325–326	Universal adult suffrage; no exclusion on religion, race, caste, or sex.
Art. 327	Parliament's power to legislate on elections.
10th Schedule	Anti-Defection Law (1985) bars elected members from switching parties post-election.
RPA 1950 & 1951	Representation of the People Acts govern electoral rolls and conduct of elections.
CEC Appt. Act 2023	Statutory law governing appointment of CEC and ECs; currently under Supreme Court challenge.

3. Key Issues for Deliberation

3.1 Independence of the Election Commission

The ECI is a constitutional body whose independence is foundational to credible elections. However, recent legislative changes have raised serious concerns about the erosion of that independence.

Prior to 2023, CEC appointments were made solely on the government's advice to the President giving the ruling party full control. In March 2023, the Supreme Court in Anoop Baranwal vs. Union of India ruled that appointments must be made by a committee of the Prime Minister, Leader of Opposition, and Chief Justice of India, until Parliament legislates. Parliament responded with the CEC and Other ECs (Appointment, Conditions of Service and Term of Office) Act, 2023, which replaced the Chief Justice of India with a Union Cabinet Minister effectively giving the government a 2:1 majority in the selection panel. The Act also downgraded the salary equivalence of Election Commissioners from Supreme Court judges to Cabinet Secretaries. The Act is currently under challenge before the Supreme Court.

Core Questions
Does excluding the CJI from the selection panel undermine the very independence the Supreme Court sought to protect?
Should an independent constitutional body's members be appointed by a process that the ruling party controls?
What appointment mechanism genuinely insulates ECI from executive pressure?

3.2 Electronic Voting Machines (EVMs) & VVPAT

India has used EVMs since 2004 nationally. Manufactured by BEL and ECIL under ECI's Technical Expert Committee, they use write-once chips and are not networked making remote hacking technically implausible per the ECI and independent technical experts. Voter-Verifiable Paper Audit Trail (VVPAT) was introduced to let voters verify their vote via a printed slip. Currently, VVPAT slips from 5 randomly selected EVMs per assembly segment are physically counted and cross-checked. In April 2024, the Supreme Court dismissed demands for 100% VVPAT counting, while allowing 5% EVM microcontroller checks post-result if tampering is alleged.

The core tension is between statistical sufficiency (experts argue even 479 randomly sampled VVPATs yield 99% accuracy) and public trust. Opposition parties and some

civil society groups continue to demand greater verification, citing the democratic principle that elections must not only be fair but be seen to be fair.

3.3 Electoral Roll Integrity

Accurate voter rolls are a precondition for fair elections. Several recent developments have raised red flags: approximately 39 lakh voters were added in Maharashtra in just five months before the 2024 assembly elections, raising suspicions of bogus additions. The Special Intensive Revision (SIR) of Bihar's electoral rolls in 2025 excluded roughly 65 lakh names from draft lists, raising disenfranchisement concerns. Duplicate EPIC (voter ID) numbers have been found across multiple states a legacy of decentralized pre-2016 issuance.

The ECI launched ERONET 2.0 in 2025 to centralize EPIC issuance and eliminate duplicates. Aadhaar-EPIC linking has been proposed for deduplication, but raises privacy concerns under the Puttaswamy judgment. Remote voting for domestic migrants millions of whom cannot travel home to vote is in pilot stage as of 2025.

3.4 Campaign Finance & the Electoral Bond Scheme

Total estimated spending in the 2024 Lok Sabha elections crossed Rs 1,00,000 crore making it the world's costliest election. The ECI caps individual candidate expenditure (up to Rs 95 lakh per Lok Sabha candidate in larger states) but imposes no cap on party spending, creating structural asymmetry favouring wealthier parties.

The Electoral Bond Scheme (introduced 2018) allowed unlimited anonymous donations to political parties via SBI-issued bonds. In February 2024, a five-judge bench of the Supreme Court unanimously struck it down in ADR vs. Union of India, holding that voters' fundamental right to information (Article 19(1)(a)) outweighs donors' privacy rights in the context of political funding. Rs 16,518 crore in bonds were purchased before the scheme was struck down. India now lacks any clear replacement mechanism, leaving campaign finance in a regulatory vacuum.

Reform Options on the Table
• State funding of elections: public money distributed to parties proportional to vote share. • Real-time digital disclosure of all donations above a threshold on the ECI website. • Cap on party-level election expenditure (not just candidate caps).

• Electoral Trust model: donations routed through audited, publicly disclosed trusts.

3.5 Criminalization of Politics

According to the Association for Democratic Reforms (ADR), 46% of MPs elected in the 2024 Lok Sabha have criminal cases against them, with 31% facing serious charges including murder and crimes against women. The existing law only disqualifies a person upon conviction and sentencing to 2+ years a high bar given India's slow judicial process, where trials routinely take decades.

The NCRWC (2002) and Law Commission's 255th Report (2015) have recommended disqualification upon framing of charges in serious offences not waiting for conviction. The Supreme Court has directed fast-track courts for MP/MLA cases; implementation remains slow. Parties are required to publish candidates' criminal records, but voter awareness and enforcement remain inadequate.

3.6 One Nation, One Election (ONOE)

India last held fully synchronized elections in 1967. Since then, near-continuous election cycles across states have meant governance is perpetually in campaign mode, with the Model Code of Conduct (MCC) freezing policy actions for months at a time. The ONOE proposal seeks to restore simultaneous Lok Sabha and state assembly elections.

The Kovind High-Level Committee (HLC), constituted in September 2023, submitted an 18,626-page report in March 2024 recommending phased implementation. 32 of 47 parties consulted supported it. The Union Cabinet accepted the proposal in September 2024. The Constitution (129th Amendment) Bill, 2024 was introduced in Parliament in December 2024 and referred to a Joint Parliamentary Committee (JPC).

Arguments For	Arguments Against
Reduces election fatigue and continuous campaign mode	Undermines federalism; local issues drowned by national narratives
Significant cost savings on election administration	Requires 18+ constitutional amendments; complex legislative process

Reduces disruption from MCC imposition on governance	If government falls mid-term, what happens? Short-term elections proposed
Reduces security forces deployment burden	Requires massive scaling up of EVMs, VVPATs, and personnel

3.7 Model Code of Conduct (MCC) & Disinformation

The MCC, enforced by the ECI from election announcement to results, prohibits use of government machinery for campaigns, communal appeals, voter bribery, and inflammatory speech. It lacks statutory backing violations result in censures and warnings rather than criminal penalties. Enforcement has been inconsistent, particularly regarding hate speech by senior politicians. There is growing demand to give the MCC statutory force under the RPA 1951.

The 2024 elections also marked the mainstreaming of AI-generated deepfakes and social media disinformation as electoral threats. All major parties deployed extensive social media operations. The ECI's Media Certification and Monitoring Committee (MCMC) oversees political advertising but has limited jurisdiction over organic or viral social media content. New regulatory proposals include mandatory AI content labelling, platform cooperation with ECI for takedowns during poll periods, and a dedicated Digital Election Integrity Unit.

Apart from the above content the delegates shall be prepared on the below topics by researching on their own:

1. Internal party democracy
2. Delimitation and federal representation
3. Post-election government formation
4. Investigative agency actions during elections
5. Media regulation and paid news
6. Opinion polls and micro-targeting
7. Voter accessibility
8. Anti-defection law implementation
9. Electoral violence and phase management
10. Local body election synchronization
11. Women’s representation
12. Political data governance
13. Civil service neutrality e.t.c

4. Key Committees, Reports & Judgments

Delegates must be familiar with the following landmark references:

Reference	Key Significance
Goswami Committee (1990)	Recommended bar on candidates with framed criminal charges; ECI independence measures.
NCRWC Report (2001)	Comprehensive reform blueprint covering criminality, party finance, and simultaneous elections.
Law Commission 255th Report (2015)	Disqualification upon charge framing for heinous offences; inner-party democracy regulation.
Kovind HLC Report (2024)	Blueprint for ONOE with phased implementation; constitutional amendment roadmap.
Anoop Baranwal vs. UoI (2023)	SC directs independent 3-member panel (PM, LoP, CJI) for CEC/EC appointments.
ADR vs. UoI (2024)	SC strikes down Electoral Bond Scheme; upholds voters' right to information on party funding.
ADR vs. ECI (2024)	SC dismisses 100% VVPAT demand; allows 5% EVM microcontroller checks post-result.

5. Questions for Delegates (QFD)

Delegates must come prepared to address the following:

- Does the CEC Appointment Act, 2023 adequately protect the ECI's independence from the executive? What changes, if any, would your delegation recommend?
- What mechanism should replace the struck-down Electoral Bond Scheme to ensure both formal political donations and full transparency?
- How should India balance the statistical case for existing VVPAT sampling against the public's demand for greater electoral technology transparency?
- Should candidates with serious criminal charges framed against them be barred from contesting elections? How would such a rule be safeguarded against political misuse?

- Does One Nation One Election strengthen or weaken Indian federalism? What safeguards, if any, could make simultaneous elections compatible with federal principles?
- How should the ECI regulate AI-generated political content and social media disinformation within the existing constitutional framework of free speech?
- What lessons can India draw from your country's electoral system to strengthen institutional accountability? And e.t.c

6. Research Directions & Recommended Reading

Essential Texts for All Delegates
• Constitution of India: Articles 324–329 (Election Commission provisions) • Representation of the People Act, 1951 (key disqualification provisions) • CEC Appointment Act, 2023 (full text) • Constitution (129th Amendment) Bill, 2024 (ONOE Bill) • SC Judgment: Anoop Baranwal vs. Union of India (March 2023) • SC Judgment: ADR vs. Union of India (February 2024) — Electoral Bonds • Law Commission of India, 255th Report (2015) • ADR Report: Analysis of Criminal, Financial Background of MPs — Lok Sabha 2024

Key Sources for Research
• Election Commission of India: eci.gov.in • PRS Legislative Research: prsindia.org • Association for Democratic Reforms: adrindia.org • Supreme Court Observer: scobserver.in • Vidhi Centre for Legal Policy: vidhilegalpolicy.in • News: The Hindu, Indian Express, The Wire (for current affairs, 2023–2025) Youtube,sansadtv,etc

7. Glossary of Key Terms

Term	Definition
ECI	Election Commission of India — constitutional body administering all Indian elections.

CEC	Chief Election Commissioner — head of the ECI.
EVM	Electronic Voting Machine — electronic device used to record votes.
VVPAT	Voter-Verifiable Paper Audit Trail — printed slip confirming a voter's choice.
NOTA	None of the Above — ballot option to reject all candidates.
MCC	Model Code of Conduct — ECI guidelines binding parties and candidates during elections.
RPA	Representation of the People Act (1950 & 1951) — statutory backbone of election law.
EPIC	Electoral Photo Identity Card — voter ID card.
Electoral Bond	Anonymous political donation instrument, struck down by SC in February 2024.
ONOE	One Nation, One Election — proposal for simultaneous national and state elections.
ADR	Association for Democratic Reforms — civil society body monitoring Indian elections.
HLC	High-Level Committee (Kovind) — examined ONOE feasibility (2023–24).
JPC	Joint Parliamentary Committee examining the ONOE Bill (2024–25).
SIR	Special Intensive Revision — comprehensive revision exercise for electoral rolls.

Position Paper Guidelines

Each delegate must submit a Policy Paper (500–700 words) before the conference covering:

1. Your portfolio stance on electoral integrity and the reforms discussed in this guide.

Note: There wont be any usage of internet while the committee is in session and the executive board also at the discretion shall suspend at anytime usage of all electronic devices in the committee so it is informed that all the delegates shall bring the relevant prints if necessary.

And also Delegates are expected to go beyond this guide — research recent news (2023–2025), primary legislation, and Supreme Court rulings. Substantive, evidence-based engagement is expected.